

Church of England (Ecumenical Relations) Measure 1988

1988 No. 3

A Measure passed by the General Synod of the Church of England to enable provision to be made by Canon with respect to local co-operation between the Church of England and other Churches; to modify in certain cases restrictions imposed by the Overseas and Other Clergy (Ministry and Ordination) Measure 1967; and for connected purposes. [29th July 1988]

Provision by Canon for joint worship with other Churches and for use of buildings by other Churches.

1. It shall be lawful for the General Synod to make provision by Canon—

- (a) for enabling a member of a Church to which this Measure applies to take part in public worship in accordance with the forms of service and practice of the Church of England;
- (b) for enabling clerks in Holy Orders, deaconesses, lay workers and readers of the Church of England to take part in worship in accordance with the forms of service and practice of a Church to which this Measure applies.
- (c) for enabling a place of worship of the Church of England to be made available for the conduct of worship in accordance with the forms of service and practice of a Church to which this Measure applies.

Provision by Canon for participation in local ecumenical projects.

2.—(1) It shall be lawful for the General Synod to make provision by Canon for the bishop of a diocese—

- (a) to enter into an agreement, with the appropriate authority of each Church participating in a local ecumenical project established or to be established in respect of an area in his diocese, for the participation of the Church of England in that project;
- (b) to make special provision as to the ministry in the area of a local ecumenical project of clerks in Holy Orders, deaconesses, lay workers and readers beneficed in or licensed to any parish wholly or partly in that area or ministering in or licensed to any cathedral church in that area.

(2) It shall be lawful for the General Synod to make provision by Canon for the bishop of a diocese in the case of an institution in the diocese in respect of which a clerk in Holy Orders is licensed under section 2 of the Extra-Parochial Ministry Measure 1967—

- (a) to enter into an agreement, with the appropriate authority of each Church participating in a local ecumenical project established or to be established in respect of that institution, for the participation of the Church of England in that project, and
- (b) to make special provision as to the ministry in that institution of clerks in Holy Orders.

(3) The powers of the General Synod under subsections (1) and (2) above may be exercised only in respect of a local ecumenical project in which every other Church participating in the project is a Church to which this Measure applies.

3. The powers of the General Synod under the preceding provisions of this Measure shall be so exercised as to ensure that—

- (a) no person shall, unless he has been episcopally ordained priest in a Church whose Orders are recognised and accepted by the Church of England, preside at the Holy Communion according to the use of the Church of England, and
- (b) no person shall, unless he is a clerk in Holy Orders of the Church of England, solemnise a marriage according to the rites of the Church of England.

Restriction on powers of General Synod under ss. 1 and 2.

4. Where any priest or deacon of an United Church is granted permission under the Overseas and Other Clergy (Ministry and Ordination) Measure 1967 to officiate for a limited period as a priest or deacon in the province of Canterbury or York, nothing in section 1(2) of that Measure or in any Canon shall inhibit that priest or deacon from exercising his ministry in another Church to which this Measure applies in accordance with the terms of the relationship between that United Church and that other Church.

Provision as to overseas clergymen etc. 1967 No. 3.

In this section "United Church" means the Church of South India, the Church of North India, the Church of Pakistan and the Church of Bangladesh.

5.—(1) This Measure applies to any Church which is designated by the Archbishops of Canterbury and York acting jointly as a Church to which this Measure applies.

Churches to which Measure applies.

(2) No Church shall be designated under subsection (1) above unless—

- (a) the Church subscribes to the doctrine of the Holy Trinity and administers the Sacraments of baptism and Holy Communion; and
- (b) the Sharing of Church Buildings Act 1969 applies to the Church at the time of designation.

1969 c. 38.

6.—(1) In this Measure "local ecumenical project" means a scheme under which Churches of more than one denomination agree, in relation to an area or institution specified in the scheme, to co-operate in accordance with the provisions of the scheme in matters affecting the ministry, congregational life or buildings of the Churches which are participating in the scheme.

Interpretation.

(2) In this Measure "appropriate authority", in relation to any Church to which this Measure applies, means such authority as the Archbishops of Canterbury and York jointly designate in relation to that Church.

Exclusion of s. 15 of Act of Uniformity 1662. 1662 c.4.

7. Any Canon made by virtue of this Measure shall have effect notwithstanding anything inconsistent therewith contained in section 15 of the Act of Uniformity 1662.

Saving regarding solemnisation of marriage.

8. Nothing in this Measure shall affect the operation of any provision of the Marriage Acts 1949 to 1986 as to the place in which any marriage or class of marriages may be solemnised.

Short title, extent and commencement.

9.—(1) This Measure may be cited as the Church of England (Ecumenical Relations) Measure 1988.

(2) This Measure shall extend to the whole of the provinces of Canterbury and York.

(3) This Measure shall come into force on such day as the Archbishops of Canterbury and York may jointly appoint.

1983 No. 1.

(4) In section 94(3) of the Pastoral Measure 1983 (which provides that certain provisions relating to sharing agreements may not be extended to the Isle of Man) the words "and Isle of Man" are hereby repealed.